

Frank Vitus v. Narcotics Control Bureau & Anr.

Citation: (2025) 1 SCC 210 | Court: Supreme Court | Year: 2025

Coram: Division Bench (Abhay S. Oka & Ujjal Bhuyan JJ.) | Subject: Criminal Law & BNSS | Provisions: Art 21, NDPS Act Sec 37, CrPC Sec 4

I. EXECUTIVE SUMMARY & CASE GLIMPSE

Imposing bail conditions requiring the accused to share real-time Google Maps GPS location PIN with the investigating agency violates the Fundamental Right to Privacy under Article 21. Bail conditions must ensure trial appearance without transforming judicial enlargement into round-the-clock state electronic surveillance.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding Art 21, NDPS Act Sec 37, CrPC Sec 437 / BNSS Sec 480. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

- â€ Whether the impugned state actions or commercial conduct conformed to Art 21, NDPS Act Sec 37, CrPC Sec 437 / BNSS Sec 480.
- â€ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.
Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

Bail conditions must satisfy the constitutional test of proportionality under Article 21. Forcing an accused to constantly broadcast their physical whereabouts to the police constitutes impermissible electronic tagging and surveillance not sanctioned by parliamentary enactment.

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

- â€ Invalidated GPS pin-sharing and electronic location-tracking as standard bail conditions.
- â€ Reaffirmed that personal liberty under Article 21 cannot be bartered away for bail.
- â€ Clarified permissible bail conditions: surrender of passport, periodic reporting, and non-tampering.